

OFFICE OF THE SECRETARY

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August 10, 2022

The Honorable Susan E. Green
Presiding Judge of the Superior Court
County of Sutter
1175 Civic Center Blvd.
Yuba City, CA 95993

Re: Steven Lynn
CDCR No: T50359
Case No: CRF01-2459
Date of Sentence: March 22, 2002

Dear Honorable Susan E. Green:

The purpose of this letter is to provide the court with the authority to resentence inmate Steven Green, T50359 pursuant to Penal Code (PC) Section 1172.1, subdivision (a)(1), based on a change in sentencing law. PC 1172.1(a)(1) provides that upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may consider recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

Inmate Lynn was convicted and sentenced as a third strike offender on three counts of PC 211, Robbery Second Degree, each with count enhancements of PC 12022.53(b), Use of a Firearm, and stayed count enhancements of PC 12022.5(a)(1), Use of a firearm; one count of PC 12021(a)(1), Possession of Firearm by Felon. Additionally, Lynn received two case enhancements of PC 667(a), Prior Felony Conviction of Serious Offense. Inmate Lynn received a term of 115 years to life and has a minimum eligible parole date of March 26, 2082.

In light of those convictions, please consider the amendment to PC 12022.53(h), which became effective January 1, 2018. This section previously required a sentencing court to impose enhancements for the personal use of a firearm in the commission of enumerated felonies. However, courts are now empowered with discretion to strike or dismiss a personal use firearm enhancement at sentencing or resentencing pursuant to PC 1172.1(a)(1), in the interest of justice pursuant to PC 1385.

The inmate's case factors have been compiled and thoroughly reviewed by the Director of Adult Institutions and myself. Having reviewed the enclosed documentation, it appears that inmate

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Lynn's sentence warrants the attention of the court. Pursuant to PC 1172.1(a)(1), as the Secretary, I recommend the sentence be recalled and that they be resentenced.

Sincerely,

A handwritten signature in cursive script, appearing to read "K. Allison".

KATHLEEN ALLISON
Secretary

Enclosures:
Cumulative Case Summary
Abstract of Judgment
Minute Order
Information Summary

cc: Sutter District Attorney's Office
Sutter Public Defender's Office